

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

CORY J. BENNETT, Plaintiff,

Civil Action No. 1:26-cv-01601

v.

**THE UNIVERSITY OF TEXAS AT AUSTIN;
EMILY HSIAO; JAMES G. SCOTT; SALLY K.
RAGSDALE; JAY BARTROFF; KELLI
BRADLEY; and JEFF GRAVES**, Defendants.

**PLAINTIFF’S EMERGENCY RENEWED MOTION TO RESTRICT ACCESS
TO UNREDACTED IFP AFFIDAVIT AND SUBSTITUTE REDACTED COPY**

Plaintiff Cory J. Bennett, proceeding pro se, respectfully renews the Motion to Restrict Access to Unredacted IFP Affidavit and Substitute Redacted Copy submitted on June 13, 2026. Plaintiff asks the Court to immediately restrict public access to Document 3, substitute the previously submitted redacted copy, and maintain the complete affidavit under restricted access. Plaintiff does not seek sanctions or other retrospective relief in this motion.

In support, Plaintiff states:

1. On June 12, 2026, Plaintiff delivered his initiating papers in person to the Austin Divisional Office. They included the complete AO 240 application and Austin Division financial affidavit. Plaintiff’s complaint and other public-facing papers used his private-mailbox address, while the affidavit separately requested his “Home Address” and detailed personal financial information.
2. Before delivering the papers, Plaintiff called the Austin Divisional Office and understood that the late-Friday submission would not be processed that day. Plaintiff therefore delivered the complete materials for Court review on Friday and submitted the sealing and redaction materials the following day, before docketing. He did not intend for the

complete affidavit to be made remotely accessible to the public before the sealing and redaction request was considered.

3. On June 13, Plaintiff submitted through the Court's public Dropbox his Motion to Restrict Access to Unredacted IFP Affidavit and Substitute Redacted Copy, together with the proposed redacted copy. He also emailed the ECF Help Desk, identified this case, and asked that the complete affidavit not be made publicly available while the motion was considered. The June 13 motion is attached as Exhibit A.
4. On June 15, after the ECF Help Desk directed him to the Austin Divisional Office, Plaintiff called that office and was informed that the June 13 submission had been received and associated with Case No. 1:26-cv-01601. Plaintiff retains contemporaneous audio recordings of the June 12 and June 15 calls and can provide them or transcripts if directed by the Court.
5. On June 23, the Clerk entered the unredacted IFP materials as Document 3 and made the PDF remotely accessible. The Court's public RSS feed listed the "Proceed In Forma Pauperis" entry for Document 3, included a document link, and timestamped the entry at 16:42:48 GMT. A redacted contemporaneous capture is attached as Exhibit C, with the direct document link and related URL identifiers redacted. The June 13 motion was not reflected on the docket. Plaintiff promptly contacted the Austin Divisional Office, chambers, and the ECF Help Desk. The June 13–23 email correspondence is attached as Exhibit B.
6. Document 3 contains Plaintiff's residential address, limited identifying information concerning a nonparty family member, and detailed personal financial and medical-expense information. Plaintiff's private-mailbox address remains public and available for service and Court communications.
7. Federal Rule of Civil Procedure 5.2(e)–(f), Local Rule CV-5.2, and the Western District's published privacy policy authorize the requested restriction, targeted redaction, and retention of the complete affidavit under seal or restricted access. The district's privacy

policy specifically identifies financial affidavits as records treated as nonpublic absent a court order.

8. The requested relief is narrow. Plaintiff does not seek to seal the complaint, the case, or any merits filing. He asks only that the complete financial affidavit be restricted and that the redacted copy be substituted if the Court determines that a public copy should remain available.

WHEREFORE, Plaintiff respectfully requests that the Court:

- A. immediately restrict public access to Document 3;
- B. substitute the redacted IFP copy attached to the June 13 motion (Exhibit A);
- C. maintain the complete IFP application and financial affidavit under seal or restricted access for Court review;
- D. consider the June 13 motion and redacted replacement as submitted before Document 3 was docketed; and
- E. grant such other relief as the Court deems just and proper.

No Defendant has appeared, and there is presently no opposing counsel with whom Plaintiff can confer regarding this motion.

Respectfully submitted,

Dated: June 23, 2026



Cory J. Bennett, Plaintiff Pro Se
Mailing Address: 6705 W Highway 290
Ste 607 PMB #268
City/State/ZIP: Austin, TX 78735-8407
Telephone: (512) 630-5607
Fax: None
Email: csquaredbennett@gmail.com

**EXHIBITS TO PLAINTIFF'S EMERGENCY RENEWED MOTION
TO RESTRICT ACCESS TO UNREDACTED IFP AFFIDAVIT**

The following exhibits are submitted in support of Plaintiff's emergency renewed motion.

Exhibit	Description	Pages
Exhibit A	June 13 motion to restrict access and substitute redacted copy	5–16
Exhibit B	ECF Help Desk correspondence about incorrect docketing	17–19
Exhibit C	Redacted public RSS feed capture for the Document 3 docket entry	20

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

CORY J. BENNETT, Plaintiff,

Civil Action No. 1:26-cv-01601

v.

THE UNIVERSITY OF TEXAS AT AUSTIN;
EMILY HSIAO; JAMES G. SCOTT; SALLY K.
RAGSDALE; JAY BARTROFF; KELLI
BRADLEY; and JEFF GRAVES, Defendants.

PLAINTIFF'S MOTION TO RESTRICT ACCESS TO UNREDACTED
IFP AFFIDAVIT AND SUBSTITUTE REDACTED COPY

Plaintiff Cory J. Bennett, proceeding pro se, respectfully moves the Court to restrict public access to the unredacted Application to Proceed In Forma Pauperis and Financial Affidavit submitted with Plaintiff's initiating papers, and to permit Plaintiff to substitute the attached redacted public copy omitting Plaintiff's residential address and limited non-party identifying information. In support, Plaintiff states:

1. Plaintiff filed this civil-rights action and related initiating papers on June 12, 2026. Plaintiff's public complaint, proposed summonses, and application for electronic filing use Plaintiff's mailing address at a private mailbox, where Plaintiff can receive court mail.
2. The Austin Division IFP financial affidavit requested Plaintiff's "Home Address." Plaintiff completed that field in the unredacted affidavit submitted with the initiating papers.
3. Plaintiff requests narrow redaction or restriction only of Plaintiff's residential address and the name of a non-party family member listed only to identify title ownership of

a vehicle disclosed in the IFP materials. Plaintiff does not seek to seal the complaint, the exhibits, the case, or the factual allegations.

4. Good cause exists because public disclosure of Plaintiff's residential address creates personal-safety and retaliation concerns in this civil-rights action. In connection with Plaintiff's external reporting of the underlying events to federal law enforcement, Plaintiff was advised to avoid public disclosure of his residential address for safety reasons. Plaintiff does not include the name of the federal employee, report number, or underlying communication in this motion because those details are not necessary to the requested relief and may concern nonpublic reporting information. Plaintiff's residential address is not material to the merits of the claims or to the Court's determination of indigency.
5. Federal Rule of Civil Procedure 5.2(e) permits the Court, for good cause, to require redaction of additional information, and Rule 5.2(f) permits an unredacted copy to be filed under seal. Local Rule CV-5.2 also contemplates redaction or sealed/restricted treatment of confidential information when necessary. Plaintiff's mailing address remains available for service and court communications, and the Court may retain the unredacted IFP financial affidavit under restricted access for its review.

WHEREFORE, Plaintiff respectfully requests that the Court:

- A. restrict public access to the unredacted IFP application and financial affidavit submitted with Plaintiff's initiating papers;
- B. permit Plaintiff to file or substitute the attached redacted public copy omitting Plaintiff's residential address and limited non-party identifying information;
- C. direct the Clerk to maintain the unredacted IFP financial affidavit under restricted access for Court review; and
- D. grant such other relief as the Court deems just and proper.

Respectfully submitted,

Dated: June 12, 2026

Cory Bennett

Cory J. Bennett, Plaintiff Pro Se

Mailing Address: 6705 W Highway 290

Ste 607 PMB #268

City/State/ZIP: Austin, TX 78735-8407

Telephone: (512) 630-5607

Fax: None

Email: csquaredbennett@gmail.com

Attachment 4 - Motion to Proceed in Forma Pauperis

AO 240 (Rev. 01/09) Application to Proceed in District Court Without Prepaying Fees or Costs (Short Form)

UNITED STATES DISTRICT COURT

for the

Western District of TexasCory J. BennettPlaintiff

v.

The University of Texas at Austin;Emily Hsiao; James G. Scott; Sally K. Ragsdale;Jay Bartroff; Kelli Bradley; Jeff Graves

))))))

Civil Action No. 1:26-cv-01601

**APPLICATION TO PROCEED IN DISTRICT COURT WITHOUT PREPAYING FEES OR COSTS
(Short Form)**

I am a plaintiff or petitioner in this case and declare that I am unable to pay the costs of these proceedings and that I am entitled to the relief requested.

In support of this application, I answer the following questions under penalty of perjury:

1. *If incarcerated.* I am being held at: _____.

If employed there, or have an account in the institution, I have attached to this document a statement certified by the appropriate institutional officer showing all receipts, expenditures, and balances during the last six months for any institutional account in my name. I am also submitting a similar statement from any other institution where I was incarcerated during the last six months.

2. *If not incarcerated.* If I am employed, my employer's name and address are:

My take-home pay or wages are: _____ per (specify pay period) _____.

3. *Other Income.* In the past 12 months, I have received income from the following sources (check all that apply):

- | | | |
|--|------------------------------|--|
| (a) Business, profession, or other self-employment | ☐ Yes | ☒ No |
| (b) Rent payments, interest, or dividends | ☐ Yes | ☒ No |
| (c) Pension, annuity, or life insurance payments | ☐ Yes | ☒ No |
| (d) Disability, or worker's compensation payments | ☐ Yes | ☒ No |
| (e) Gifts, or inheritances | ☐ Yes | ☒ No |
| (f) Any other sources | ☐ Yes | ☒ No |

If you answered "Yes" to any question above, describe below or on separate pages each source of money and state the amount that you received and what you expect to receive in the future.

AO 240 (Rev. 01/09) Application to Proceed in District Court Without Prepaying Fees or Costs (Short Form)

4. Amount of money that I have in cash or in a checking or savings account: .

\$1,274.06 .

5. Any automobile, real estate, stock, bond, security, trust, jewelry, art work, or other financial instrument or thing of value that I own, including any item of value held in someone else's name *(describe the property and its approximate value)*:

\$4,695.00 - 2007 Toyota Yaris Hatchback ([REDACTED])

6. Any housing, transportation, utilities, or loan payments, or other regular monthly expenses *(describe and provide the amount of the monthly expense)*:

Feb.-May 2026 net statement outflows average approx. \$568.32/month.

Gasoline/fuel avg. \$105.91.

Food/groceries/dining avg. \$194.32.

Prescriptions \$32.98.

Other miscellaneous avg. \$234.28.

7. Names (or, if under 18, initials only) of all persons who are dependent on me for support, my relationship with each person, and how much I contribute to their support:

8. Any debts or financial obligations *(describe the amounts owed and to whom they are payable)*:

Unpaid medical bills totaling \$461.86:

Baylor Scott & White (\$111.86)

Thrive Medical (\$100.00)

Austin-Travis County EMS (\$250.00)

Declaration: I declare under penalty of perjury that the above information is true and understand that a false statement may result in a dismissal of my claims.

Date: June 11, 2026



Applicant's signature

Cory J. Bennett

Printed name

Attachment 5 - Application to Proceed *In Forma Pauperis* and Financial Affidavit in Support (Austin Division ONLY)

IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

§
Cory J. Bennett _____ §
V. § Case No. 1:26-cv-01601
The University of Texas at Austin; §
Emily Hsiao; James G. Scott; Sally K. Ragsdale; §
Jay Bartroff; Kelli Bradley; Jeff Graves _____ §

**APPLICATION TO PROCEED IN FORMA PAUPERIS
AND FINANCIAL AFFIDAVIT IN SUPPORT**

I, Cory J. Bennett
declare that I am the Applicant in the above-entitled proceeding. I am requesting permission to proceed without being required to prepay fees, costs, or give security therefor. In support of my application, I state that because of my poverty, I am unable to pay the costs of said proceeding or give security therefor and I believe I am entitled to relief. The nature of my action is briefly stated as follows:
Federal disability-discrimination, retaliation, due-process, and First Amendment claims against a public university and individual state actors.

In further support of this application, I answer the following questions:

Applicant's Name: Cory J. Bennett

Applicant's Home Address: _____

Questions Regarding Ability to Pay

Employment:

Are you now employed? Yes ☐ No ☒ Am Self Employed ☐

If yes, how much do you earn per month? \$ _____

If no, give month and year of last employment: _____

How much did you earn per month? \$ _____

Name and Address of current or prior employer: _____

If married, state Spouse's name: _____

Is your Spouse employed? Yes ☐ No ☐

If working, how much does your spouse earn? \$ _____

Do you receive any funds from relatives or for child support? If so, how much per month do you receive? \$ _____

Other Income:

Have you received within the past 12 months any income from a business, profession or other form of self-employment, or in the form of rent payments, interest, dividends, retirement or annuity payments (such as Social Security benefits), or other sources, including government benefits (such as A.F.D.C. or Social Security disability benefits)? Yes ☐ No ☒

If yes, give the amount and identify the sources:

<u>Received</u>	<u>Sources</u>
\$ _____	_____
\$ _____	_____
\$ _____	_____
\$ _____	_____

Cash:

Have you any cash on hand or money in savings or checking accounts? Yes ☒ No ☐

If yes, state total amount: \$ 1,274.06

If neither you nor your spouse receive income of any kind, how are you able to pay for food and shelter?

Food and other living expenses are paid from existing bank-account funds.
I do not pay shelter or insurance costs directly.

Property:

Do you own any real estate, stocks, bonds, notes, automobiles, or other valuable property

(excluding ordinary household furnishings and clothing)? Yes ☒ No ☐

If yes, give value and describe it and say in whose name the property is registered.

<u>Value</u>	<u>Description</u>
\$ <u>4,695.00</u>	<u>2007 Toyota Yaris Hatchback ([REDACTED])</u>
\$ _____	_____
\$ _____	_____
\$ _____	_____

Family Status and Dependents:

Marital Status: Single ☒ Married ☐ Widowed ☐ Separated ☐ or Divorced ☐

Total Number of Dependents: 0

Are any of your dependents employed? If so, where:

How much do your dependent(s) earn monthly? \$ 0

List persons you actually support, your relationship to them:

None _____

Do you pay alimony or child support or any other court-ordered payments? Yes ☐ No ☒

If yes, list how much and describe:

Monthly Debts of Applicant and/or Dependents

<u>Type of Debt</u>	<u>Name of Creditor</u> <u>Total Debt</u> <u>Payment</u>
Medical bill _____	Baylor Scott & White \$ 111.86 \$ 0
Medical bill _____	Thrive Medical \$ 100.00 \$ 0
Medical bill _____	Austin-Travis County EMS \$ 250.00 \$ 0
_____	_____ \$ _____ \$ _____

Monthly Expenses of Applicant and/or Dependents

Rent or House Payment: \$ 0 _____

Electric & Water Bills: \$ 0 _____

Gas: \$ 105.91 _____

Phone: \$ 0 _____

Insurance: \$ 0 _____

For what purpose: _____

Prescriptions: \$ 32.98

For what purpose: Prescription medication.

Transportation/Car Payments: \$ 0

For what purpose: _____

Medical Bills: \$ 0

For what purpose: _____

Legal Bills: \$ 0

For what purpose: _____

Loans: \$ 0

For what purpose: _____

Miscellaneous: \$ 428.60

For what purpose: Food/groceries/dining avg. \$194.32; other misc avg. \$234.28.

Is there any more information the Court should consider in making its determination?

In Fall 2025 (Aug.-Dec.), I incurred significant medical/disability-related expenses

for orthopedics, chiropractic care, physical therapy, clinic care, and ER bills.

These injuries/conditions have ongoing effects; I recently renewed a second

temporary disability placard after an initial six-month placard.

AFFIDAVIT OF APPLICANT

I declare under penalty of perjury the above answers and statements to be true and correct to the best of my knowledge. I understand that this affidavit will become an official part of the United States District Court files and that any false or dishonest answer or statements knowingly made by me in this Financial Affidavit are illegal and may subject me to criminal penalties, including any applicable fines or imprisonment, or both.

Signature: Cory Bennett

Printed Name: Cory J. Bennett

Date: June 11, 2026



C&C Bennett <csquaredbennett@gmail.com>

Incorrect Docketing of Unredacted File - Case No. 1:26-cv-01601

4 messages

C&C Bennett <csquaredbennett@gmail.com>
To: txwd_ecf_help@txwd.uscourts.gov

Tue, Jun 23, 2026 at 12:21 PM

Hi,

I noticed that my case was published with my IFP form unredacted. I had called Monday June 15th and confirmed that my sealing/redaction motion was associated with my case while my case was not yet opened then. I am very concerned because it seems that these materials were made public despite an explicit motion for sealing them having been filed, and there is no associated order or denial from a judge for this motion.

I was explicitly instructed to have certain PII redacted in my IFP materials from federal law enforcement, and this procedural irregularity and disregard for the motion has or will very likely cause irreparable harm.

Cory Bennett
(512) 630-5607
csquaredbennett@gmail.com

----- Forwarded message -----

From: **TXWD_ECF_help** <txwd_ecf_help@txwd.uscourts.gov>
Date: Mon, Jun 15, 2026 at 8:53 AM
Subject: RE: Request to Restrict Public Access to Unredacted IFP Affidavit - Case No. 1:26-cv-01601
To: C&C Bennett <csquaredbennett@gmail.com>

Thank you for your inquiry.

Please contact the Austin Divisional Office at (512) 916-5896 directly for further assistance with this case.

Thank you.

TXWD ECF Help Desk
U.S. District Court
Western District of Texas
Support Hours: 8am - 5pm CT
Monday - Friday (excluding holidays)

From: C&C Bennett <csquaredbennett@gmail.com>
Sent: Saturday, June 13, 2026 1:37 PM
To: TXWD_ECF_help <txwd_ecf_help@txwd.uscourts.gov>
Subject: Request to Restrict Public Access to Unredacted IFP Affidavit - Case No. 1:26-cv-01601

CAUTION - EXTERNAL:

Hello,

I filed Case No. 1:26-cv-01601 late Friday afternoon as a pro se plaintiff. While my public complaint and other initiating documents use my PMB mailing address, the Austin Division IFP financial affidavit contains my residential address.

Due to personal safety and retaliation concerns, I have prepared a formal Motion to Restrict Access to Unredacted IFP Affidavit and Substitute Redacted Copy, along with a redacted public version of the IFP affidavit. The motion seeks to redact only my residential address and a non-party family member's name related to vehicle title. I've submitted this via the dropbox and plan to follow up in person first thing Monday morning.

In the meantime, I respectfully request that the Clerk's office take any available steps to prevent the unredacted IFP financial affidavit from being made publicly available on PACER until the Court has an opportunity to consider the motion. If this type of request should be directed to a specific person or department that handles post-filing privacy or restricted access matters, I would appreciate being directed accordingly.

Thank you for your assistance.

Best regards,

Cory Bennett
(512) 630-5607

csquaredbennett@gmail.com

CAUTION - EXTERNAL EMAIL: This email originated outside the Judiciary. Exercise caution when opening attachments or clicking on links.

TXWD_ECF_help <txwd_ecf_help@txwd.uscourts.gov>
To: C&C Bennett <csquaredbennett@gmail.com>

Tue, Jun 23, 2026 at 12:40 PM

Thank you for your inquiry.

Upon review of the documents on the docket, we see no motion to seal. Please file any motions you wish the court to review.

Contact the Austin Divisional Office at (512) 916-5896 directly for further assistance with this case.

[Quoted text hidden]

C&C Bennett <csquaredbennett@gmail.com>
To: TXWD_ECF_help <txwd_ecf_help@txwd.uscourts.gov>

Tue, Jun 23, 2026 at 12:43 PM

Hi,

I have an audio recording from June 15th confirming receipt of that motion to seal filed June 13th. This was also confirmed over the phone June 12th and over the attached email. This is plainly inconsistent with Federal Rule of Civil Procedure 5.2 and local privacy rules.

Cory Bennett
(512) 630-5607
csquaredbennett@gmail.com

[Quoted text hidden]

TXWD_ECF_help <txwd_ecf_help@txwd.uscourts.gov>
To: C&C Bennett <csquaredbennett@gmail.com>

Tue, Jun 23, 2026 at 12:44 PM

Please contact the Austin Divisional Office at (512) 916-5896 directly for further assistance with this case.

TXWD ECF Help Desk

[Quoted text hidden]

[Quoted text hidden]

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